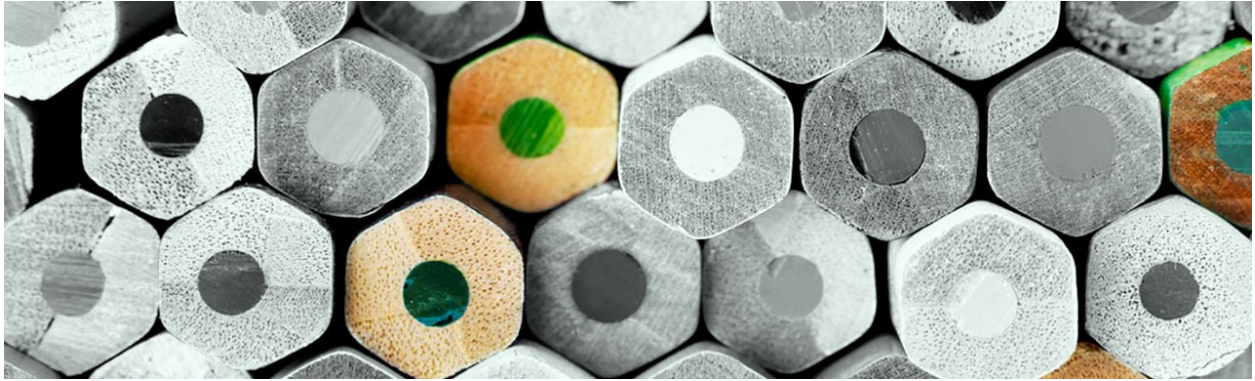




GINGO & BAIR

LAW, LLC



A MODERN APPROACH TO EDUCATION LAW

The demands placed on Ohio boards of education and their leadership teams have increased exponentially, with more and more districts and organizations serving school districts needing specialized legal services while respecting a promise to the community to focus funds on education.

Gingo & Bair Law advises schools and organizations serving schools based on a best-fit for each district: from experienced and practical “in-house” counsel dedicated to being part of day-to-day decisions, to responsible guidance for specific projects, to planning for upcoming initiatives to modernize district staff and student practices.

COMMITMENT

Gingo & Bair Law, LLC's objective is to provide high-quality legal services to clients at a fair, flexible and reasonable cost. It is our sincere belief that too often, schools pay too high a cost for legal services, particularly in the current environment where budgets are tight, and thus every available dollar should be used for student programs, staff development, and other matters that directly support student achievement and learning. We want our clients to remain off the front pages for "overspending" on legal fees, and instead on the front pages touting all the great things each school district and organization is doing for children.

In service to our clients, we believe in increased responsiveness and accountability while providing affordable and customized advocacy for public schools and related entities. We remain dedicated to a meaningful and modern approach to education law with a focus on personal relationships – a philosophy that we believe defines success for public education, our clients, and ourselves.

FEE STRUCTURE

With regard to financial particulars, our billable rate for legal fees ranges is \$260 per billable hour. We have learned many clients prefer this billable hour arrangement; however, please note that we are open to discussing alternative flat fee arrangements as matters arise that may be suitable for such.

DEDICATED MEMBER OF YOUR LEADERSHIP TEAM

Gingo & Bair Law provides comprehensive education law guidance based on the unique needs of your school district or organization, recognizing that a one-size-fits-all approach is not compatible with today's complex PreK-12 structure. With an understanding of small-firm and large-firm models, Gingo & Bair provides districts with "in-house" professional services that foster a close attorney-client relationship rooted in trust and confidence.

As general counsel, we advise clients – from small to large school districts along with ESCs, COGs and Career and Technical Centers – on the wide range of education issues they face in their daily operations. Frequent topics include employment issues, student rights and discipline, labor disputes, public records law, student privacy issues, special education, and board policy and administrative guideline changes and public officials' ethics law.



We have extensive experience in representing school districts and related entities in the following matters:

Personnel

- Hiring and retention of employees
- Fair separation from employment practices - non-renewal, termination, resignation
- Negotiating collective bargaining agreements - lead negotiator and "behind the scenes" guidance
- Interpreting collective bargaining agreements
- Grievances - from informal step to arbitration
- Investigator for employee misconduct
- Experience litigating in multiple venues
- Guidance on state and federal employment laws
- Government agency representation (EEOC, OCRC, OCR, SERB)

Board of Education/Governing Board

- Compliance with Ohio's Sunshine Law
- Reviewing and revising Board policies and administrative guidelines
- Responding to public records requests
- Vendor contract negotiations
- Impact of e-media on board members
- Ethics compliance issues
- Professional training for employees and board members
- Managing communications to the public
- Experience litigating in multiple venues

Students

- Student discipline - compliance, best practices, and dispute resolution
- Guidance on state and federal special education laws (IDEA, Section 504 of the Rehabilitation Act)
- Consultation on school boards' obligations regarding identification and evaluation of students with disabilities
- Development of Individualized Education Programs (IEPs) and Section 504 Plans
- Constitutional issues unique to school districts
- Health and safety concerns
- Timely guidance on key issues - e.g., social media issues, transgender students
- Student transportation
- Residency and enrollment issues
- Board policy/regulation and student handbook best practices
- Professional training for employees and administrator



We have represented school boards in lawsuits regarding state and federal anti-discrimination laws, workers' compensation appeals, student and staff injuries, contract claims, voting rights laws, statutory immunity issues, special education, and free speech rights, among numerous other claims. Our attorneys have also argued multiple state and federal court appeals, including those before numerous Ohio district court panels and the U.S. Court of Appeals for the Sixth Circuit, which is one level below the U.S. Supreme Court.

REFERENCES AND RECOMMENDATIONS

Dr. Andrea Celico, Superintendent

Bedford City School District
475 Northfield Rd.
Bedford, OH 44146
440.439.1500

Services performed since 2014 include human resources, labor negotiations, and labor relations issues; student services including discipline, residency and enrollment; board governance including but not limited to reviewing and revising board policy and administrative guidelines; public records requests; ethics compliance issues; and professional training for employees and board members and general counsel on a variety of school related issues.

Kevin Spicher, Superintendent

Howland Local School District
8200 South St. SE
Warren, Ohio 44484
330.856.8200

Services performed since 2016 include human resources, labor negotiations and labor relations issues; student services including discipline and enrollment; board governance including but not limited to reviewing and revising board policy and administrative guidelines; public records requests; ethics compliance issues and professional training for employees and board members; and general counsel on a variety of school related issues.



Dr. Charles Smialek, Superintendent

Parma City School District
 5311 Longwood Avenue
 Parma, Ohio 44134
 440.842.5300

Services performed since 2018 include human resources, labor negotiations and labor relations issues, board governance including but not limited to reviewing and revising board policy and administrative guidelines; public records requests; professional training for board members; and general counsel on a variety of school related issues. In addition, we have provided specialized counsel and consultation to regionalize efforts in addressing educational choice options and related legislation.

RFP Section 6.2.1:

We were brought in as legal counsel for the Parma City School District Board of Education to assist in transitioning the District from labor strife to labor peace, following years of the teachers' union working under an imposed contract.

We were successful in that endeavor by helping to identify the correct bargaining model for the situation, by working collaboratively with the teachers' union leadership, by keeping the Board fully informed of the process, and by being honest about shared interests and needs to move the District forward. Ultimately both sides ratified a three-year agreement that has contributed to stability in this area for the District and community.

Please note that while we saw ourselves as a partner in this process, the ultimate successes were won by the District's Board and leadership team as well as the Union leadership team. We want to be clear that credit is given to those for whom credit is due in Parma.

Phillip Herman, Superintendent

Hudson City School District
 2400 Hudson Aurora Road
 Hudson, OH 44236
 330.653.1200

Services performed since 2017 include human resources, labor negotiations and labor relations issues; student services including discipline and enrollment; board governance including but not limited to reviewing and revising board policy and administrative guidelines; public records requests; ethics compliance issues and professional training for employees and board members; and general counsel on a variety of school related issues.



Ann Marie Thigpen, Superintendent

Niles City School District
309 N. Rhodes Avenue
Niles, Ohio 44446
330.989.5095

Services performed since 2016 include human resources, labor negotiations and labor relations issues; student services including discipline and enrollment; board governance including but not limited to reviewing and revising board policy and administrative guidelines; public records requests; ethics compliance issues and professional training for employees and board members; and general counsel on a variety of school related issues.

CONTACT INFORMATION

The attorney-client relationship is one of mutual trust and confidence. If you have any questions at all concerning the terms of this commitment, we truly invite your inquiries. Gingo & Bair Law, LLC wants to ensure you have complete confidence in the work that would be provided to the Board of Education of the Brecksville-Broadview Heights City School District.

Gingo & Bair Law, LLC acknowledges and affirms its agreement with section eight, General Requirements and Conditions.

Firm contact information is as follows:

Megan Bair, Esq., C/O Gingo & Bair Law, LLC
Summit One, 4700 Rockside Road, Suite 440
Cleveland, Ohio 44131
mbair@gingobair.com
330.519.7071





Megan J. Bair, *Owner*

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About

Megan advises public school districts and boards of education regarding a variety of education law matters, including all facets of labor and employment issues, human resources, student rights and discipline, labor disputes, public records law, employee benefits, special education, student privacy issues, and board governance issues. She has served as lead negotiator in bargaining for teachers and non-teaching staff and defended boards of education at arbitration and in special education due process hearings.

Megan has also defended boards of education against charges filed with state and federal administrative agencies, including the Ohio Civil Rights Commission; U.S. Equal Employment Opportunity Commission; and U.S. Department Education, Office for Civil Rights.

She is also a frequent speaker at school law conferences and provides in-service training to administrators and staff members alike. She is a member of the Ohio School Boards Association's Ohio Council of School Board Attorneys, National School Boards Association's Council of School Attorneys, and Ohio State Bar Association.

Experience

- Provided specialized counsel and consultation to regionalize efforts to overcome the difficulties facing public education and expand opportunities through facilitation of community-wide partnerships and shared services.
- Advised an academically failing school district and provided customized, in-person professional development and continuous support related to teacher accountability



and proper use of evaluations that resulted in a 200 percent increase in teacher support plans.

- Successfully defended districts through teacher discipline issues, including suspensions and terminations, and working with the Ohio Department of Education, Office of Professional Conduct.

Recognitions

- Ohio Super Lawyers “Rising Star” – 2017-2021

Education

- University of Akron School of Law, J.D., 2011
- The Ohio State University, B.A., *cum laude*, 2007

Admissions

- Ohio, 2011
- U.S. Court of Appeals for the 6th Circuit
- U.S. Dist. Ct., N. Dist. of Ohio

Memberships and Affiliations

- Ohio School Boards Association’s Ohio Council of School Board Attorneys
- National School Boards Association’s Council of School Attorneys
- Ohio State Bar Association





Lindsay F. Gingo, *Owner*

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About

Lindsay advises clients regarding a variety of education law matters, including all facets of labor and employment issues, student rights and discipline, labor disputes, public records law, employee benefits, special education, student privacy issues, and board policy and administrative guideline changes. She has served as lead negotiator in bargaining for teachers and non-teaching staff, defended boards at the State Employment Relations Board, and successfully advised clients in termination proceedings and labor arbitrations.

Lindsay also has significant experience litigating lawsuits filed in both state and federal court, as well as charges filed with state and federal administrative agencies, including the Ohio Civil Rights Commission; U.S. Equal Employment Opportunity Commission; and U.S. Department Education, Office for Civil Rights. She has represented school boards and private schools in lawsuits regarding state and federal anti-discrimination laws, workers' compensation appeals, student and staff injuries, contract claims, voting rights laws, statutory immunity issues, special education, and free speech rights, among numerous other claims. Lindsay has also argued multiple state and federal court appeals, including those before numerous Ohio district court panels and the U.S. Court of Appeals for the Sixth Circuit.

Lindsay is also a frequent speaker at school law conferences and provides in-service training to administrators and staff members alike. She is a member of the Ohio School Boards Association's Ohio Council of School Board Attorneys, National School Boards Association's Council of School Attorneys, Ohio State Bar Association, and Cleveland Metropolitan Bar Association.

Experience

- Represented school board and administrators in both federal and state cases involving student suicide. The matter is likely to have repercussions throughout the state of Ohio with respect to how accountable schools might be for student-to-student bullying.



- Argued challenge to Ohio background check legislation before the U.S. Court of Appeals for the Sixth Circuit, resulting in the law remaining intact, as well as numerous school district decisions to release former offenders from employment.
- Drafted all legal memoranda and coordinated expert discovery in a federal Voting Rights Act case brought by U.S. Department of Justice against a board of education, where the judge ordered the remedial election plan proffered by the district in a case of first impression with nationwide impact.

Recognitions

- Ohio Super Lawyers “Rising Star” – 2012-2021

Education

- Chicago-Kent College of Law, J.D., with honors, 2008
- The Ohio State University, B.A., *cum laude* and with honors, 2004

Admissions

- Ohio, 2008
- U.S. Court of Appeals for the 6th Circuit
- U.S. Dist. Ct., N. Dist. of Ohio
- U.S. Dist. Ct., S. Dist. of Ohio

Memberships and Affiliations

- Ohio School Boards Association’s Ohio Council of School Board Attorneys
- National School Boards Association’s Council of School Attorneys
- Ohio State Bar Association, Education Law Committee Vice Chair
- Cleveland Metropolitan Bar Association





Sarah Kutscher, *Of Counsel*

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About

Sarah provides counsel to Ohio school boards on a variety of school law matters, including special education law issues, labor and employment law matters, student rights and discipline, and school finance. She also has experience with administrative level hearings and cases filed with the Ohio Department of Education, the U.S. Department of Education, Office for Civil Rights, the Equal Employment Opportunity Commission, and the Ohio Civil Rights Commission. Sarah has successfully litigated cases in both state and federal court in employment, civil rights, residency, and school finance matters. She also clerked with the U.S. District Court for the Northern District of Ohio. Sarah speaks at school law conferences and provides in-service training to school boards.

Experience

- Argued challenge to improper school district of residence determination for a special education student in juvenile court for the 11th District, resulting in a substantial change in financial responsibility for the district.
- Successfully defended district's decision to expel a student for improper social media posts relating back to school administrators. The case established precedent for supporting school districts' disciplinary decisions regarding inappropriate off-campus social media use.
- Defended the district's interpretation and implementation of HB 410 establishing new requirements for addressing student truancy.
- Represented numerous school boards in due process hearings, including mediation, discovery, witness preparation, and litigation preparation.

Education

- DePaul University College of Law, J.D., *magna cum laude*, 2012
- Northwestern University, B.S., *cum laude*, 2007



Admissions

- Ohio, 2012
- U.S. Court of Appeals for the 6th Circuit
- U.S. Dist. Ct., N. Dist. of Ohio
- U.S. Dist. Ct., S. Dist. of Ohio